

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO

Law and Motion Calendar
Honorable Nicole S. Healy
800 N. Humboldt Street, San Mateo CA 94401
Department 28, Courtroom I
Wednesday, August 5, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept28@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5128 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

EVERYONE APPEARING BY ZOOM MUST USE A CAMERA

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 226 9361 Password: 289347

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
2:00 PM LINE 1	
17-CLJ-03761	PERSOLVE, LLC VS. EVELYN A. ALVAREZ, ET AL
PERSOLVE, LLC EVELYN A. ALVAREZ	NADER SABAWI

CLAIM OF EXEMPTION

TENTATIVE RULING:

Evelyn Alvarez's claim of exemption is **GRANTED**.

Judgment creditor Persolve Legal Group, LLP objects to the claim of exemption filed by judgment debtor Evelyn Alvarez. On December 20, 2017, Persolve, LLC obtained a judgment in the amount of \$3,567.10 against Alvarez, which was later assigned to Persolve Legal Group, LLP

California Code of Civil Procedure, section 706.050 provides, in pertinent part, that garnishment of the wages of an employee is limited to the lesser of 20 percent of the disposable earnings of an individual judgment debtor for any workweek subject to levy (except for certain high earners). The term "disposable earnings" is defined as "the portion of an individual's earnings that remains after deducting all amounts required to be withheld by law." (Code Civ. Proc., § 706.011, subd. (a).)

The burden of proof is on the judgment debtor to demonstrate that the property to be levied on is exempt in whole or in part. (Code Civ. Proc., § 703.580.) Alvarez has submitted a financial statement. Persolve objects to Alvarez's \$900/month clothing expense, and \$850/month utilities and telephone expense. Persolve states that 20% of Alvarez's biweekly disposable income is \$437.07 (that is, 20% of her net biweekly income of \$2,185.37) and seeks \$159.90 of Alvarez's "net disposable biweekly income."

Alvarez is the single parent of four minor children. She does not receive child support, and states that the children's other parent is unemployed. Her expenses are not unreasonable for five people. Indeed, she has not reported monthly payments for medical or dental expenses, although she recently took all four children to the dentist, and still owes for an emergency room visit for her son.

Based on her representation, the court finds that Alvarez's income is necessary to support herself and her family, that is, her four minor children. (Code Civ. Proc., § 706.051.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, judgment creditor's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 2**

24-CIV-04529

CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN
YANG MIN YANG

X YOUNG LAI
JONATHAN E. MADISON

MOTION TO COMPEL DEFENDANT YANG MIN YANG TO PROVIDE RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES (SET TWO, NO. 17-26.)

TENTATIVE RULING:

For the reasons stated below, plaintiff Chunyu Tan's "Motion to Compel Defendant Yang Min Yang to Provide Responses to Plaintiff's Special Interrogatories (Set Two, No. 17-26)" and "Request for Imposing Monetary Sanctions against Defendant and His Attorney in the Amount of \$3,000," filed March 13, 2026, is **GRANTED in part**. (Code Civ. Proc. § 2023.010 et. seq. [discovery misuse].)

A. Service of the Motion

The court has questions about whether this Motion was properly served. On March 13, 2026, plaintiff served four separate discovery-related motions on defendant Yang Min Yang, all four of which are set for a hearing on August 5, 2026 (including this motion, which pertains to plaintiff's Special Interrogatories, Set Two.) Plaintiff's March 18, 2026 Proof of Service is somewhat unclear as to whether the moving papers were served on defendant's counsel, Jonathan Madison, at the proper email address. (The Proof of Service states that the moving papers were served by email to "jmadison@themadisonfirm" rather than "jmadison@themadisonfirm.com.")

Counsel for plaintiff and defendant are **ORDERED TO APPEAR** by Zoom at the hearing on August 5, 2026 at 2:00 p.m. in Department 28, Courtroom I. Plaintiff's counsel must supply an explanation to the court regarding service. Assuming the court is satisfied that service was accomplished, the court tentatively rules as follows.

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned \$500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the \$500,000 loan. Plaintiff alleges that defendants still owe \$505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

With this motion, plaintiff seeks to compel responses to plaintiff's Special Interrogatories (Set Two), Nos. 17-26, as well as monetary sanctions.

C. Law Governing Sanctions for Discovery Misuse

"It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that "a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Id.*, at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey and order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery."], section 2023.010, subdivisions (d), (g).) The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

D. Plaintiff's Special Interrogatories (Set Two), Nos. 17-26

Plaintiff asserts that defendant has not supplied any responses to plaintiff's Special Interrogatories, Set No. Two, Nos. 17-26. (See Separate Statement iso Motion.) Defendant has offered no explanation for his failure to respond to this discovery.

A. Monetary Sanctions

Plaintiff seeks \$3,000 in monetary sanctions against defendant Yang Min Yang and his counsel for attorney's fees incurred with this motion. (March 13, 2026 Lai Decl., ¶ 14(d) [seeking compensation for six hours of attorney time at \$500/hour].) This request is **GRANTED in part**.

The court credits plaintiff for four hours of attorney time at \$500/hour (4 x \$500 = \$2,000). The court is reducing the requested time because there is no opposition for plaintiff's counsel to review. Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang and his counsel of record is **GRANTED** in the amount of \$2,000, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 3**

24-CIV-04529

CHUNYU TAN VS YANG MIN YANG, ET AL

CHUNYU TAN
YANG MIN YANG

X YOUNG LAI
JONATHAN E. MADISON

MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF'S FORM INTERROGATORIES (SET ONE, NO. 2.2, 2.6-2.7, 15.1, 50.1, 50.3, AND 50.6)

TENTATIVE RULING:

Plaintiff Chunyu Tan's motion for terminating, issue, evidence, and monetary sanctions of \$4,000 regarding Defendant Yang Min Yang's responses to Plaintiff's Form Interrogatories, Set One, Nos. 2.2, 2.6, 2.7, 15.1, 50.1, 50.3, and 50.6., filed March 13, 2026, is **GRANTED in part**.

A. Service of the Motion

The court has questions about whether this Motion was properly served. On March 13, 2026, plaintiff served four separate discovery-related motions on defendant Yang Min Yang, all four of which are set for a hearing on August 5, 2026 (including this motion, which pertains to plaintiff's Form Interrogatories, Set One.) Plaintiff's March 18, 2026 Proof of Service is somewhat unclear as to whether the moving papers were served on defendant's counsel, Jonathan Madison, at the proper email address. (The Proof of Service states that the moving papers were served by email to "jmadison@themadisonfirm" rather than "jmadison@themadisonfirm.com.")

Counsel for plaintiff and defendant are **ORDERED TO APPEAR** by Zoom at the hearing on August 5, 2026 at 2:00 p.m. in Department 28, Courtroom I. Plaintiff's counsel must supply an explanation to the court regarding service. Assuming the court is satisfied that service was accomplished, the court tentatively rules as follows.

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned \$500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the \$500,000 loan. Plaintiff alleges that defendants still owe \$505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

Plaintiff filed the instant motion requesting every category of sanction authorized by the Civil Discovery Act but contempt. (See Code Civ. Proc., §§ 2023.030, 2031.300, subd. (c)) based on Yang's responses to plaintiff's Form Interrogatories, Set One, Nos. 2.2, 2.6-2.7, 15.1, 50.1, 50.3, and 50.6. The motion is unopposed. As discussed above, the court notes the proof of service filed does not demonstrate service upon defendant's service address of record thus service was incomplete.

C. Law Governing Discovery Misuse

"It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that "a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Id.*, at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence, or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey an order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence, or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) Trial courts have broad discretion regarding whether to impose sanctions and which sanctions to impose. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 789.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery."], section 2023.010, subdivisions (d), (g).)

The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

Lesser sanctions should usually be granted before imposing terminating sanctions. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771.) Terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application. (*Dept. of Forestry and Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Typically, a party's disobedience of an order compelling discovery must come before an order imposing terminating sanctions. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.) A court does not abuse its discretion in ordering termination sanctions against a party that has "persisted in its pattern of failure or refusal to give meaningful responses to discovery." (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1106.)

D. Discussion

In addition to the delay in prosecution she has suffered, plaintiff contends she is prejudiced because the responses to Form Interrogatories Nos. 2.2, 2.6-2.7, 15.1, 50.1, 50.3, and 50.6 are incomplete. Plaintiff states that "the information is presumptively within defendant's knowledge, but either he intentionally withheld the information or failed to make a reasonable effort to obtain it." (Opp., at p. 3.)

A review of the Separate Statement in support of the Motion demonstrates that the answers are indeed incomplete. For example, in response to FROG No. 15.1(a) which demands that Yang "state all facts upon which you base the denial or special or affirmative defense," defendant responded "The facts set forth in Responding Party's Answer to the Complaint in this matter are clear on the basis for denial and/or Special Affirmative Defenses." There are no facts alleged in Yang's answer, filed on December 4, 2024, nor has he pled any facts to support his affirmative defenses. In his supplemental response defendant stated: "(a) Defendant denies liability as alleged. Defendant did not engage in wrongdoing of any kind. Defendant's understanding is that Plaintiff's claims arise from contractual disputes involving other parties, and Defendant disputes the allegations. Discovery is ongoing." That response supplies no facts, nor supports Yang's affirmative defenses.

In response to FROG No. 15.1(b), defendant offered only the name of Che Ping Tam. In response to FROG No. 15.1(c) Yang has not identified any documents supporting his denials or affirmative defenses other than the "loan documents, escrow documents, and [unspecified] related transactional documents." In response to FROG No. 50.3, which required him to "identify each agreement excused and state why performance was excused," Yang responded "Defendant contends that performance was excused, in part, due to Plaintiff's own conduct and actions by other parties to the transaction. Discovery is ongoing." Defendant failed to explain his answer. Further, when asked (in FROG No. 50.6) if "any agreement alleged in the pleadings ambiguous? If so, identify each ambiguous agreement and state why it is ambiguous," defendant did not supply any substantive explanation but stated in his supplemental response that "The alleged agreements are ambiguous. Discovery is ongoing."

Defendant's responses are wholly inadequate, long overdue, and not code-compliant. The court therefore **ORDERS** the following evidentiary sanctions:

- Defendant Yang Min Yang is precluded from offering any facts in further support of his response to FROGs 15.1(a) or (b), or documents in response to FROG 15.1(c);
- Defendant Yang Min Yang is precluded from offering any facts in further support of his response to FROG 50.3;
- Defendant Yang Min Yang is precluded from offering any facts in further support of his response to FROG 50.6;

As to plaintiff's request for monetary sanctions against defendant yang and his counsel, the court agrees with plaintiff that failure to respond or engage in an "authorized method of discovery" and "disobeying a court order to provide discovery," or failing to do either in timely fashion, are misuses of the discovery process. (Code Civ. Proc., § 2023.010, subds. (d), (g).) Monetary sanctions are intended to compensate a party for "the reasonable expenses, including attorney's fees, incurred by anyone as a result of" a misuse of discovery. (*Id.*, § 2023.030, subd. (a).)

The court grants in part the request for monetary sanctions. The court credits plaintiff for five hours of attorney time at \$500/hour (5 x \$500 = \$2,500). (See Lai Decl., ¶ 14(a).) The court is reducing the requested time because there is no opposition for plaintiff's counsel to review, and the four motions are substantially similar. Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang and his counsel of record is **GRANTED** in the amount of \$2,500, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, plaintiff's counsel shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM **LINE 4**

24-CIV-04529

CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN
YANG MIN YANG

X YOUNG LAI
JONATHAN E. MADISON

MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF’S SPECIAL INTERROGATORIES (SET ONE, NO. 1-12)

TENTATIVE RULING:

For the reasons stated below, plaintiff Chunyu Tan’s “Motion for Terminating, Issue, Evidence, and Monetary Sanctions Re: Plaintiff’s Special Interrogatories (Set One, No. 1-12),” filed March 13, 2026, is **GRANTED-in-part**. (Code Civ. Proc. § 2023.010 et. seq. [discovery misuse].)

A. Service of the Motion

The court has questions about whether this Motion was properly served. On March 13, 2026, plaintiff served four separate discovery-related motions on defendant Yang Min Yang, all four of which are set for a hearing on August 5, 2026 (including this motion, which pertains to plaintiff’s Special Interrogatories, Set One.) Plaintiff’s March 18, 2026 Proof of Service is somewhat unclear as to whether the moving papers were served on defendant’s counsel, Jonathan Madison, at the proper email address. (The Proof of Service states that the moving papers were served by email to “jmadison@themadisonfirm” rather than “jmadison@themadisonfirm.com.”)

Counsel for plaintiff and defendant are **ORDERED TO APPEAR** by Zoom at the hearing on August 5, 2026 at 2:00 p.m. in Department 28, Courtroom I. Plaintiff’s counsel must supply an explanation to the court regarding service. Assuming the court is satisfied that service was accomplished, the court tentatively rules as follows.

B. Background

Plaintiff Chunyu Tan’s August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned \$500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the \$500,000 loan. Plaintiff alleges that defendants still owe \$505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

With this motion, plaintiff seeks terminating sanctions against defendant Yang Min Yang, or alternatively, issue, or evidentiary sanctions, plus monetary sanctions, for alleged discovery abuse — specifically, defendant Yang’s failure to provide basic responses to plaintiff’s Special Interrogatories (Set One), Nos. 1-12.

On August 7, 2025, the court ordered defendant Yang to serve code-compliant responses to the Special Interrogatories (Set One) (as well as responses to other discovery served by plaintiff) within 10 days. (Aug. 7, 2025 Order.) Defendant Yang did not do so. Instead, Yang forced plaintiff to initiate and attend a series of informal discovery conferences (IDCs) for about three more months. Defendant Yang promised to serve proper responses to the Special Interrogatories, but kept delaying until November 18, 2025, when Yang finally served “supplemental” responses to the Special Interrogatories (Set One). However, Yang’s “supplemental” responses provided virtually no information at all. (See generally, March 13, 2026 Lai Decl., and March 13, 2026 “Separate Statement re Special Interrogatories.”)

Thus, despite the court’s August 7, 2025 Order instructing defendant Yang to serve code-complaint responses to the Special Interrogatories (Set One) within 10 days, Yang did not serve further responses until November 18, 2025, and even then, the responses were essentially meaningless non-responses.

Now, nearly a year later, defendant Yang has still not provided any meaningful responses to plaintiff’s Special Interrogatories (Set One).

B. Law Governing Sanctions for Discovery Misuse

“It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that “a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Id.*, at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey and order compelling further responses, the court

may make those orders that are just, including the imposition of an issue, evidence or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) Trial courts have broad discretion regarding whether to impose sanctions and which sanctions to impose. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 789.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery."], section 2023.010, subdivisions (d), (g).)

The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

Lesser sanctions should usually be granted before imposing terminating sanctions. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771.) Terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application. (*Dept. of Forestry and Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Typically, a party's disobedience of an order compelling discovery must come before an order imposing terminating sanctions. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.) A court does not abuse its discretion in ordering termination sanctions against a party that has "persisted in its pattern of failure or refusal to give meaningful responses to discovery." (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1106.)

C. Plaintiff's Special Interrogatories (Set One), Nos. 1-12

Plaintiff's Special Interrogatories and defendant's responses are summarized as follows:

1. State the amount of the interest payments of the LOAN that DEFENDANTS have made

...

(Defendant Yang's summarized supplemental response: defendant is presently unable to state the amount of interest payments allegedly made in connection with the loan referenced ...)

2. IDENTIFY any DOCUMENTS showing the interest payments of the LOAN ...

(Defendant Yang's summarized supplemental response: notwithstanding a ledger, defendant is not presently aware of any documents in his possession, custody, or control showing interest payments made in connection with the alleged loan.)

3. State the amount of the principal payments of the LOAN that DEFENDANTS have made ...

(Defendant Yang's summarized supplemental response: defendant is presently unable to state the amount of interest payments allegedly made in connection with the referenced loan.)

4. IDENTIFY any DOCUMENTS showing the principal payments of the LOAN.

(Defendant Yang's summarized supplemental response: notwithstanding a ledger, defendant is not presently aware of any documents in his possession, custody, or control showing interest payments made in connection with the alleged loan.)

5. State the amount of the compensation that STEVEN GUANG LEUNG received from DEFENDANTS in connection with the LOAN.

6. IDENTIFY any DOCUMENTS showing the compensation that STEVEN GUANG LEUNG received from DEFENDANTS in connection with the LOAN.

7. State whether any written agreement(s) entered into between STEVEN GUANG LEUNG and DEFENDANTS in connection with the LOAN.

(Defendant Yang's summarized supplemental responses to SROGS 5-7: defendant "is currently unaware of any compensation paid to Steven Guang Leung by Defendant in connection with the loan," and is not aware of documents including written agreements relating to any payments.)

8. State when DEFENDANTS received the LOAN funds of \$500,000.

(Defendant Yang's summarized supplemental response: defendant lacks sufficient information at this time to state the specific date or method by which the alleged loan funds were received.)

9. State whether DEFENDANTS received the LOAN funds in the form of cash.

(Defendant Yang's summarized supplemental response: defendant does not recall receiving the alleged loan funds in the form of cash.)

10. IDENTIFY the PERSON who delivered the LOAN funds ...

(Defendant Yang's summarized supplemental response: defendant is presently unable to identify the person who delivered the loan funds.)

11. Describe how DEFENDANTS made the interest-only payments of the LOAN to PLAINTIFF from June 1, 2022 through April 1, 2023 (e.g., through cash, checks, or wire-transfer.)

(Defendant Yang's summarized supplemental response: defendant is presently unable to describe the method by which interest-only payments, if any, were made from June 1, 2022 through April 1, 2023.)

12. If the interest-only payments of the LOAN to PLAINTIFF from June 1, 2022, through April 1, 2023, were disbursed through an intermediate person, IDENTIFY that person.

(Defendant Yang's summarized supplemental response: defendant is presently unaware of any person who served as an intermediary for the disbursement of interest-only payments to plaintiff.)

As can be seen from defendant Yang's "supplemental" responses, he has made no attempt to provide meaningful responses to the Special Interrogatories (Set One), despite being given substantial time to do so, and despite having been ordered to do so. (Aug. 7, 2025 Order.)

D. Plaintiff's Breach of Contract Allegations

The FAC's first cause of action for breach of contract (breach of the Promissory Note) alleges, in part:

27. Pursuant to the terms of the Promissory Note, the Borrowers were to make 11 monthly interest only-payment[s] of \$5,000 starting from June 1, 2022, and the principal and last interest payment in a total of \$505,000 on or before May 1, 2023.

28. From June 1, 2022, through April 1, 2023, 11 interest-only payments of \$5,000 were made. However, Defendants failed to make the Balloon Balance of \$505,000 on May 1, 2023, and continue to fail to do so thereafter. ...

30. As a result of the default, Defendants YANG and TAM have breached the Promissory Note. As a direct and proximate consequence of Defendants' breach, Plaintiff has been damaged in the amount of the Balloon Balance, the Late Charges, the interest at the Note Rate and Default Rate that continues to accrue, and the Return Check Charge, plus any additional fees and expenses permitted under the Promissory Note, all in an amount according to proof at the time of trial.

31. As of now, the amounts due, owing, and outstanding under the Promissory Note are the principal of \$505,000, the Return Check Charge of \$50, the Late Charge of \$85,000, and interest of \$107,312.50, which are continuously accruing.

E. Issue and/or Evidentiary Sanctions

In its discretion, the court declines to issue termination sanctions at this time. However, the court hereby issues the following issue/evidentiary sanctions against defendant Yang Min Yang.

Plaintiff contends that she loaned \$500,000 to defendants in 2022, and thereafter, defendants made 11 interest-only payments to plaintiff in the amount of \$5,000 each. Plaintiff alleges that defendants failed to make the final “balloon” payment of \$505,000 (\$500,000 in principal plus the last \$5,000 interest payment). Thus, plaintiff contends that defendants still owe \$505,000 on the Note, plus additional amounts for a returned check charge, late charge, and interest, which are still accruing.

Because defendant Yang has refused to provide any information about any principal and/or interest payments on the loan, defendant Yang Min Yang is and shall be barred and precluded from offering, at trial, any evidence to refute or dispute plaintiff’s contentions that:

- In 2022, plaintiff loaned \$500,000 to defendants, per the referenced Promissory Note, which has not been repaid;
- After the loan was made, defendants made a total of 11 interest-only payments of \$5,000, but defendants have not paid, and still owe, the entire principal amount of the loan (\$500,000), plus the final interest payment of \$5,000 (for a total of \$505,000), plus any additional amounts that plaintiff may prove at trial (for example, returned check charge(s), late charge(s), and interest.)

The motion for monetary sanctions is also **GRANTED in part**, against defendant Yang Min Yang, in the amount of \$3,000.

Plaintiff seeks \$4,000 in monetary sanctions against defendant Yang Min Yang and his counsel for attorney’s fees incurred with this motion. (March 13, 2026 Lai Decl., ¶ 14(b) [seeking compensation for eight hours of attorney time at \$500/hour].) The court credits plaintiff for six hours of attorney time at \$500/hour (6 x \$500 = \$3,000). The court is reducing the requested time because there is no opposition for plaintiff’s counsel to review. Accordingly, plaintiff’s motion for monetary sanctions against defendant Yang Min Yang and his counsel of record is **GRANTED** in the amount of \$3,000, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 5**

24-CIV-04529

CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN
YANG MIN YANG

X YOUNG LAI
JONATHAN E. MADISON

MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE, NO. 1-9)

TENTATIVE RULING:

Plaintiff Chunyu Tan's Motion for Terminating, Issue, Evidence, and Monetary Sanctions Regarding Plaintiff's Requests for Production of Documents (Set One, Nos. 1–9) is **GRANTED in part**.

A. Service of the Motion

The court has questions about whether this Motion was properly served. On March 13, 2026, plaintiff served four separate discovery-related motions on defendant Yang Min Yang, all four of which are set for a hearing on August 5, 2026 (including this motion, which pertains to plaintiff's Requests for Production of Documents, Set One.) Plaintiff's March 18, 2026 Proof of Service is somewhat unclear as to whether the moving papers were served on defendant's counsel, Jonathan Madison, at the proper email address. (The Proof of Service states that the moving papers were served by email to "jmadison@themadisonfirm" rather than "jmadison@themadisonfirm.com.")

Counsel for plaintiff and defendant are **ORDERED TO APPEAR** by Zoom at the hearing on August 5, 2026 at 2:00 p.m. in Department 28, Courtroom I. Plaintiff's counsel must supply an explanation to the court regarding service. Assuming the court is satisfied that service was accomplished, the court tentatively rules as follows.

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned \$500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the \$500,000 loan. Plaintiff alleges that defendants still owe \$505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

On August 7, 2025, having failed to provide any responses whatsoever, Yang was ordered to serve code-compliant responses to Tam's first set of requests for production by August 19, 2025, and to pay sanctions in the amount of \$425 by September 9, 2025. (Aug. 7, 2025 Order; see Aug. 7, 2025 Affidavit of Service.) At an unspecified time, Yang served responses to the requests, in which he stated his inability to comply with any because he variously is not aware of any responsive documents, has not identified any, or does not possess any. (See March 13, 2026 Separate Statement, Request for Production [Sep. Stmt], *passim*.) On November 18, 2025, Yang served further responses the day before an informal discovery conference which had been scheduled to address defects in the original responses. (March 13, 2025 Declaration of X. Young Lai [Requests for Production]), ¶¶ 3–4, 6–7, 9.)

Neither the original responses nor the further response are code-compliant: each fails to “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party” and “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item” as required by statute. (Code Civ. Proc., § 2031.230; see Sep. Stmt, *passim*.) Nor at any time did Yang pay the monetary sanction. (Lai Decl., ¶ 3.) Therefore, Yang in violation of the August 7, 2025 order.

On this basis, Tan seeks every category of sanction authorized by the Civil Discovery Act but contempt. (See Code Civ. Proc., §§ 2023.030, 2031.300, subd. (c).)

C. Law Governing Sanctions for Discovery Misuse

“It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that “a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Id.*, at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence, or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey an order compelling further responses, the court

may make those orders that are just, including the imposition of an issue, evidence, or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) Trial courts have broad discretion regarding whether to impose sanctions and which sanctions to impose. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 789.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing “misuses of the discovery process”, which include “[f]ailing to respond or to submit to an authorized method of discovery” and “[d]isobeying a court order to provide discovery.”], section 2023.010, subdivisions (d), (g).)

The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

Lesser sanctions should usually be granted before imposing terminating sanctions. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771.) Terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application. (*Dept. of Forestry and Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Typically, a party's disobedience of an order compelling discovery must come before an order imposing terminating sanctions. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.) A court does not abuse its discretion in ordering termination sanctions against a party that has “persisted in its pattern of failure or refusal to give meaningful responses to discovery.” (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1106.)

D. Discussion

In addition to the delay in prosecution she has suffered, Tan contends she is prejudiced by the fact that no documents have been produced and accuses Yang of “withholding documents to avoid establishing his liability.” (March 13, 2026 Motion [Requests for Production], at pp. 7, l. 19.) That is, Tan argues that the fact that Yang says he has no documents is the problem.

Terminating, issue, and evidentiary sanctions are only appropriate if discovery misuse causes a party to be unable to prove or defend against claims, and the defects here have not done so. Yang's failure to state “whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party” or to “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item,” has prejudiced plaintiff's

ability to prosecute this case. (Code Civ. Proc., § 2031.230.) Accordingly, the court **ORDERS** defendant Yang to provide code-compliant responses, without objection, and to produce all responsive non-privileged documents in his possession, custody, and control within thirty (30) days of notice of entry of the formal order. If any documents are withheld on the ground of attorney-client or other privilege, Yang must produce a privilege log within forty-five (45) days of notice of entry of the formal order. If Yang fails to comply with this order, the court will consider ordering further sanctions.

The court further grants in part the request for monetary sanctions. The court credits plaintiff for five hours of attorney time at \$500/hour ($5 \times \$500 = \$2,500$). (See Lai Decl., ¶ 14(c).) The court is reducing the requested time because there is no opposition for plaintiff's counsel to review, and the four motions are substantially similar. Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang and his counsel of record is **GRANTED** in the amount of \$2,500, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, plaintiff's counsel shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM **LINE 6**

24-CIV-05711

WPS GLOBAL CONNEX, LLC VS. ROSIE BARRETT, ET AL

WPS GLOBAL CONNEX, LLC
ROSIE BARRETT

CRISOSTOMO G. IBARRA
KUSCHA HATAMI FARD

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motions of Kuscha Hatami Fard and Bruno Tarabichi to be relieved as counsel of record for defendants Rosie Barrett and James E. Barrett Corp. are **GRANTED**.

Pursuant to California Rules of Court, rule 3.1362(e), the order does not become effective until proof of service of a copy of the signed order on the client has been filed with the court.

2:00 PM **LINE 7**

25-CIV-00220

MARTIN MOUTON VS. EAST PALO ALTO COMMUNITY ALLIANCE AND NEIGHBORHOOD
DEVELOPMENT ORGANIZATION

MARTIN MOUTON
EAST PALO ALTO COMMUNITY ALLIANCE AND NEIGHBORHOOD
DEVELOPMENT ORGANIZATION

PRO PER
E. FORREST SHRYOCK

DEFENDANT EAST PALO ALTO COMMUNITY ALLIANCE NEIGHBORHOOD DEVELOPMENT ORGANIZATION'S
MOTION TO COMPEL PLAINTIFF TO PROVIDE FURTHER RESPONSES TO WRITTEN DISCOVERY

TENTATIVE RULING:

On January 21, 2026, this court denied defendant East Palo Alto Community Alliance Neighborhood Development Organization's Motion to Compel Plaintiff's Responses to Written Discovery and Request for Sanctions. The court issued a tentative ruling, finding that the motion was defective because defendant failed to submit a separate statement. Defendant has now filed what appears to be the same motion. The motion is again **DENIED**.

Plaintiff did not respond to either motion. The parties are **ORDERED TO APPEAR** at a case management conference on August 26, 2026 in Department 28 at 9:00 am to discuss the status of this case.

* * *

The Notice of Hearing, again, states the wrong address for Department 28. Department 28 is located 800 North Humboldt St., San Mateo, CA, 94401. Defendant is again cautioned to include the correct address in any future notices.

Defendant seeks to compel responses to Form Interrogatories, Special Interrogatories, and Requests for Production of Documents from plaintiff Martin Mouton claiming that plaintiff failed to provide timely responses. Defendant cites Code of Civil Procedure, sections 2030.290, subd. (b), and 2031.300, subd. (b), as authority for this Motion. (Deft.'s Mem., at pp. 3:25-4:12.)

These code sections apply where the responding party fails to serve timely responses to discovery. However, defendant acknowledges that plaintiff served responses to this discovery. (Babojanov Decl., ¶ 3.) Although plaintiff's responses consisted solely of objections (*id.*, exh. C), defendant must file a motion to compel further responses to the extent it contends that plaintiff's objections are without merit. (See Code Civ. Proc., §§ 2030.300, subd. (a) [on receipt of a response to interrogatories, propounding party may move for an order compelling further response if the propound party deems that an objection to an interrogatory is without merit or too general], 2031.310, subd. (a) [upon receipt of response to an inspection demand, the demanding party may move for an order compelling further response if the demanding party deems that an objection in the response is without merit or too general].) Additionally, a motion to compel

further responses must be accompanied by a separate statement, which defendant has not provided in support of this Motion. (See Cal. Rules of Court, rule 3.1345(a)-(b).)

Defendant's Request for Sanctions is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 8**

25-CIV-05177

JEANNETTE LONG VS. ARTICHOKE JOE'S CASINO INC.

JEANNETTE LONG
ARTICHOKE JOE'S CASINO INC.

PRO/PER
MELISSA A. HOFFMAN

MOTION FOR RECONSIDERATION (CCP 1008) AND MOTION TO SET ASIDE CCP 473(b)

TENTATIVE RULING:

Plaintiff Jeanette Long's Motion for Reconsideration and Motion to Set Aside [the Court's April 29, 2026 Order Denying Terminating Sanctions], filed on May 1, 2026, is **DENIED**.

Defendant Artichoke Joe's request for attorney's fees is **DENIED**.

Plaintiff is reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

A motion for reconsideration must be "based upon new or different facts, circumstances, or law." (Code Civ. Proc., § 1008, subd. (a).) Plaintiff has not presented new facts or legal authority. The purportedly "new fact" – an email to Ms. Long dated April 16, 2025 (Long Decl., exh. L) is not a new fact. That Ms. Long lost unidentified hard copy legal files on or about December 20, 2025 does not excuse her failure to present the email in the initial motion. Plaintiff further has not explained what documents were allegedly stolen, how that affected her prior motion, and why, given that the email continued to exist in an electronic form after the hard copy documents were purportedly taken, she did not include the email in the initial filing. "A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) Ms. Long has not done so. Accordingly, she has neither satisfied Section 1008, nor has she demonstrated "mistake, inadvertence, surprise, or excusable neglect" warranting relief. (Code Civ. Proc., § 473, subd. (b).)

Substantively, even if plaintiff had submitted the email attached as exhibit L, it would not have changed the outcome. Contrary to plaintiff, exhibit L does not "[a]dmit[] to a criminal invasion of privacy." (Mot., at p. 2.) Rather, it refers to the settlement agreement and release of all claims between the parties, signed on April 1, 2025, relating to an alleged incident involving a photograph taken by an Artichoke Joe's employee in the women's bathroom, on or about March 17, 2025. (Long Decl., exh. M.) Even if that email had indicated some form of discovery abuse, the court would still have denied the request for terminating sanctions, which is a severe remedy, only taken after other lesser remedies have proved insufficient. (*Dept. of Forestry and Fire*

Protection v. Howell (2017) 18 Cal.App.5th 154, 191 [terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application]; *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280 [terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses].)

The court **DENIES** defendant's request for fees. "A California court may impose attorney fees as a sanction only when authorized by statute to do so." (*Moofly Productions, LLC v. Favila* (2018) 24 Cal.App.5th 993, 997.) "A court may impose sanctions under section 1008, subdivision (d), 'as allowed by [s]ection 128.7.' Sanctions are not 'allowed by [s]ection 128.7' (§ 1008, subd. (d)), unless all the requirements of section 128.7, including safe harbor, are followed." (*Ibid.*) Defendant did not invoke Section 128.7 in its opposition (termed an "objection") to plaintiff's motion for reconsideration, including the safe harbor of subdivision (c). Accordingly, there is no basis on which the court can award attorney's fees.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 9**

26-UDL-00421

CHIU PROPERTIES, LLC VS. EDDY ADEMAR AREVALO, ET AL

CHIU PROPERTIES, LLC
EDDY ADEMAR AREVALO

STEVEN T. NAUMCHIK
PRO PER

DEFENDANT EDDY ADEMAR AREVALO'S DEMURRER TO COMPLAINT

TENTATIVE RULING:

Defendant Eddy Ademar Arevalo's demurrer to the complaint filed by plaintiff Chiu Properties, LLC is **OVERRULED**.

A. Defendant's Proof of Service is Defective

As an initial matter, the proof of service fails to establish proper service on plaintiff. The proof of service includes only a box to check for service by mail, but the box is unchecked. (Proof of Service filed July 21, 2026.)

The proof of service is once again addressed to "Rothbard Law Group LLO" instead of Rothbard Law Group LLP despite the court previously pointing out this same defect with defendant's prior proof of service. (See May 20, 2026 Order.) As the court previously stated, "[w]hile the latter is presumably a mere typographical error, "[s]ervice by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a. (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) Even minor technical defects such as omitting a law firm's name from an address render service by mail ineffective. (*Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362, 364 [service ineffective where mail was addressed to specific named attorney but firm's name omitted].)" (*Ibid.*)

However, because plaintiff has filed an opposition to the demurrer, the court rules on the merits.

B. Legal Standards

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not “assume the truth of contentions, deductions or conclusions of law.” (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)

A special demurrer for uncertainty pursuant to Code of Civil Procedure section 430.10, subdivision (f) is disfavored and are strictly construed, because discovery can be used for clarification. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

C. The Demurrer is Overruled

1. The Complaint is Not Uncertain as to Paragraphs V and VIII

A demurrer for uncertainty will be sustained where the complaint is so uncertain that the defendant cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.)

Defendant claims that the Complaint is uncertain as to paragraph V because it alleges that defendants materially violated and failed to perform the conditions and covenants of the lease agreement, but it does not identify the specific lease covenant, provision or term violated or the individual defendant separately.

However, defendant acknowledges that paragraph VIII alleges that defendant continued to violate and perform the covenants and conditions of the lease agreement: unauthorized occupants. (Complaint, ¶ VIII.) Moreover, the 3-day notice specifically identifies the breach based on paragraphs 10, 11 and 12 of the lease agreement. (Complaint, exh. B.) This includes that guests may not stay more than 14 consecutive days or a total of 28 days in a 12-month period. (*Ibid.*) The Complaint states that the rental unit shall not be sublet or assigned and that management discovered an unauthorized resident, Sarah Gatliff, who has resided in the unit past the permitted time for guests. (*Ibid.*) Defendant claimed to be in the process of attempting to evict the unauthorized resident. (*Ibid.*) Thus, defendant's uncertainty argument is without merit.

Defendant also contends that paragraph VIII is ambiguous as to whether it purports to state a separate, individual direct cause of action against defendant, as distinct from a continuation of the general allegations set forth in the preceding paragraphs. Defendant appears to be confused as the Complaint alleges only a single cause of action for unlawful detainer, and therefore the paragraphs must be construed together. In any event, the Complaint is not ambiguous as to paragraph VIII.

2. The Demurrer for Failure to State Facts Sufficient to Constitute a Cause of Action is Overruled

a. The 3-Day Notice and the Lease Agreement Do Not Directly Conflict

Defendant argues the Complaint fails to state facts sufficient to constitute a cause of action because the 3-day notice demands that he cure the alleged unauthorized-occupancy breach, yet

the lease agreement expressly designates unauthorized occupancy as an irremediable breach for which Landlord may elect immediate termination. (Complaint, ¶¶ IV, VI, and Exh. A.) Defendant asserts that the lease agreement and 3-day notice are in direct conflict because plaintiff served a 3-day notice to perform covenant or quit rather than simply demanding possession within 3 days. (See *Horton-Howard v. Payton* (1919) 44 Cal.App. 108, 111-113.) Defendant further contends that the 3-day notice improperly demands cure of a breach that the lease designates as irremediable.

Defendant misreads the lease agreement. Paragraph 12 is titled “Subletting and Assignment.” (Complaint, exh. A.) It states in part:

... Any person who is not named as an Occupant in this Agreement or Resident who signed this Agreement, who occupies any portion of the rental unit, for any period of time whatsoever, for any compensation or consideration whatsoever (including, without limitation, the payment of money and/or trade and/or barter of other goods, services, or property occupancy rights) is not a Guest. This constitutes attempted subletting or assignment under this Agreement, and is, ***at the election of Landlord***, irremediable breach of this Agreement and cause for immediate termination.

(*Ibid.*, emphasis added.)

Thus, the agreement provides that plaintiff may elect to treat subletting or assignment as an irremediable breach. It does not require plaintiff to do so, as defendant seems to be arguing. Therefore, plaintiff’s 3-day notice giving defendant an opportunity to comply with the agreement or quit is not in direct conflict with the lease or improper.

b. The 3-Day Notice Does Not Require the Information Claimed by Defendant

Defendant further asserts that the 3-day notice does not afford a meaningful opportunity to cure because it names no occupant or date. Defendant’s argument is wholly without merit as the 3-day notice identifies defendant Sarah Gatliss as the unauthorized resident. (Complaint, exh. B.) The 3-day notice also states that within three days, excluding weekends and judicial holidays, after the date of service upon defendant of the notice, defendant is required to perform or otherwise comply or quit and deliver possession of the property. (*Ibid.*)

c. The Just Cause Allegations are Not Insufficient

Defendant asserts that the lease agreement establishes that the tenancy is subject to the Tenant Protection Act’s just cause, but the 3-day notice does not state statutory just cause. Defendant claims that Civil Code, section 1946.2, subdivision (a) requires that just cause be stated in the written notice to terminate a tenancy and a notice omitting just cause defeats the unlawful detainer. In support, defendant cites “*Borden v. Stiles* (Cal. Ct. App. 2023)” without providing the full citation. (Defendant’s Memo., at p. 12:14 [the correct citation is *Borden v. Stiles* (2023) 92 Cal.App.5th 337].) Defendant contends the notice states only unauthorized

occupants and does not identify the applicable subdivision of 1946.2. Further, the Complaint alleges only that it complied with just cause for eviction laws and the Tenant Protection Act. Defendant claims that a termination notice failing to comply with statutorily required content is defective, and a demurrer may be sustained for this reason. (See *2710 Sutter Ventures, LLC v. Millis* (2022) 82 Cal.App.5th 842.)

Once again, defendant's argument appears without merit. Civil Code, section 1946.2, subdivision (a) provides that "after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy." (Civil Code, § 1946.2, subd. (a).) Plaintiff served a 3-day notice identifying that defendant had an unauthorized occupant in breach of the lease agreement. "At-fault just cause" includes a "breach of a material term of the lease, as described in paragraph (3) of Section 1161 of the Code of Civil Procedure, including, but not limited to, violation of a provision of the lease after being issued a written notice to correct the violation." (*Id.*, subd. (b)(1)(B).) The 3-day notice states that on March 6, 2026, management served a 3-day notice to perform or quit by removing the unauthorized occupants from the property. Thereafter, defendant failed to do so. (Complaint, exh. B.) Plaintiff then served the 3-day notice upon which this action is based. Therefore, the notice states just cause for eviction.

For the foregoing reasons, defendant Eddy Ademar Arevalo's demurrer is **OVERRULED**. Defendant Arevalo must file an answer to the Complaint within five (5) days of notice of entry of the formal order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

POSTED: 3:00 PM